

		<u>Sanctions</u> LA Carpet is awarded total sanctions of \$2,520.00, comprised of the modest amount of \$630 per Motion, against Morgan. Within 30 days of the notice of ruling, Morgan shall pay Defendant a total \$2,520.00 to Bremer Whyte Brown & O’Meara LLP. LA Carpet is ordered to serve notice.
8	Pendleton vs. Ghost Digital 2023-01371092	Motion for Leave to File Amended Complaint Plaintiff Brett Pendleton’s Motion For Leave To Amend Complaint is granted. California Rules of Court, rule 3.1324, requires a motion to amend include a copy of the proposed amendment or amended pleading, identify by page, paragraph, and line number any additions to and deletions from the prior pleading (Cal. Rules of Court, rule 3.1324(a)), and a supporting declaration that specifies: (1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324(b).) Under Code of Civil Procedure section 473, subdivision (a)(1), “[t]he court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.” While this discretion will generally be exercised liberally to permit amendment of the pleadings, the court acts within its discretion to deny an amendment where there has been a long delay in seeking the amendment and allowing the amendment would be prejudicial to the opposing side. (See <i>Magpali v. Farmers Group, Inc.</i> (1996) 48 Cal.App.4th 471, 488.) The Court finds Plaintiff has complied with Rule 3.1324. The motion is supported by a declaration from Plaintiff’s counsel, and it includes a copy of the proposed amended pleading. By the amendment, Plaintiff

		seeks to correct certain typographical errors in the operative pleading. No opposition to the motion was filed. The Court finds it is in furtherance of justice to allow the filing of the proposed amended complaint. The Court notes that the proposed pleading states that a copy of the subject agreement is attached as Exhibit 1; however, nothing is attached to the proposed pleading. This defect should be corrected before the proposed pleading is filed. Plaintiff shall file the Second Amended Complaint no later than August 28, 2026, and serve it according to the Code of Civil Procedure. OSC/Service is off calendar. CMC set on 10-5-26 at 9:00 a.m.
9	R & M Veady, Inc. vs. Tran 2024-01448302	Motion for Terminating Sanctions Plaintiff R&M Veady, Inc's unopposed motion for terminating sanctions, issue and/or evidentiary sanctions is denied without prejudice. Plaintiff's request for monetary sanctions against Defendants Thuy Thi Tran and Thomas Quach is granted. Defendants are ordered to pay \$1800.00 (\$900 each) to Plaintiff within 20 days of the notice of this ruling. Terminating sanctions are only appropriate when a party persists in disobeying the court's orders such that the ultimate sanctions of dismissing the action or entering default judgment, etc. are justified. (<i>See Deyo v. Kilbourne</i> (1978) 84 Cal. App. 3d 771, 796.) Here, thus far, Defendants have only disobeyed the Court's 4/27/26 Order. Before imposing terminating, issue or evidentiary sanctions, the Court will allow Defendants one additional opportunity to comply with that order, and serve further responses to Plaintiff's discovery and pay the outstanding monetary sanctions. Accordingly, the Court reiterates its order from 4/27/26. In addition to the monetary sanctions imposed today, Defendants Thuy Thi Tran and Thomas Quach are ordered to serve further responses to Plaintiff's form interrogatories set one, and pay monetary sanctions to Plaintiff in the amount of \$2700 total within 20 days of the notice of ruling. Plaintiff shall give notice of the ruling.